

## 25STCV23962 25STCV23962

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-10

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Case Number: 25STCV23962 Hearing Date: September 10, 2026 Dept: 731

[TENTATIVE] ORDER RE: MOTION

TO DEPOSIT FUNDS IN INTERPLEADER AND PROPOSED ORDER

Moving Party: Plaintiff, Downtown LA Law Group LLP

Opposing Party: None [Non-Opposition filed by Defendant Law Offices of Ramin Younessi]

Notice: OK

This action involves a dispute over right to portions of the attorneys' fees obtained pursuant to a resolved civil litigation brought by Chanda Kellogg (the "underlying action"), in which action Ms. Kellogg was first represented by Defendant Law Offices of Ramin Younessi before changing representation to Plaintiff Downtown LA Law Group LLP.

Before the Court is Downtown LA Law

Group LLP's motion for an order authorizing Plaintiff to deposit the sum of \$128,810.68 into the registry of the Court pursuant to Code of Civil Procedure section 386 and granting such other and further relief as the Court deems proper.

Code of Civil Procedure section 386

requires that notice of a motion seeking leave to deposit disputed funds into the court registry be served on all claimants to the funds.

Defendant Law Offices of Ramin

Younessi filed a notice of non-opposition to the motion on July 15, 2026.

The motion then first came before the Court on July 28, 2026, on which date the Court noted that the moving papers failed to show service of the same on the plaintiff at issue, Chandra Kellogg. Rather than deny the motion for lack of proper service, the Court continued the hearing to September 10, 2026, to afford Downtown LA Law Group an opportunity to file a proof of service showing service of the moving papers on Ms. Kellogg, thus allowing her an opportunity to respond.

However, as of this time, neither a proof of service responding to the Court's July 28th order nor a response from Ms. Kellogg appears in the record. It thus follows that as of this time, the moving papers do not comply with section 386 of the Code of Civil Procedure and relief cannot be granted.

Accordingly, the Court DENIES Downtown LA Law Group LLP's motion to deposit funds in interpleader.

Plaintiff Downtown LA Law Group LLP is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at [smcdept731@lacourt.org](mailto:smcdept731@lacourt.org) indicating intention to submit on the tentative as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.